DAILY ACTIVE RECALL · MASTER MATRIX & FACTS

INDIAN POLITY & GOVERNANCE

भारतीय राजव्यवस्था एवं शासन — उच्च-प्राथमिकता पुनरावलोकन

Borrowed Features, 25 Parts, 12 Schedules, High-Frequency Articles, Constitutional Offices (Ages/Tenures), Parliamentary Committees, Writs, and Landmark Supreme Court Judgments.

- **High-Yield Ratta Matrix**
  Concentrated prelims facts, tables & comparisons
- **Examiner Trap Eliminators**
  Confused pairs and high-frequency exam traps
- **15–20 Min Daily Read**
  Formulated for active morning memory drills
- **Exam-Aligned Coverage**
  Curated strictly for UPPSC Prelims, RO/ARO & BEO

UP-PCS & UK-PCS Examination Resource
General Studies Paper 1 · Prelims Fast-Recall Desk

Daily Revision Master Edition · 2026
Nitish Pratap Official Library

Daily Read — High-Yield Revision Facts (Indian Polity & Governance)

★ UPPCS & UKPCS Prelims Daily Fact Dump · Active Recall Cheat-Sheet

> **Exam Focus:** UPPSC Prelims (Paper 1), UKPSC Prelims (Paper 1), RO/ARO, BEO
> **Frequency:** Daily morning read (15–20 mins)
> **Question Types Covered:** Direct Article numbers, Schedules & Parts, Borrowed features, Writs (Habeas Corpus, Mandamus, Certiorari), Constituent Assembly Committees, Warrant of Precedence, Parliamentary terms & committees, Constitutional vs Statutory Bodies, Amendments, Landmark SC Judgments, Panchayati Raj Committees, Center-State Commissions, State-specific seats.

▶ 🎯 **Consolidated — 45 Must-Score Facts** (Click to Expand)

1. Borrowed Features of the Indian Constitution (Country-Wise Master Table)

Source Country / Document	Borrowed Features & Principles
Government of India Act 1935 (*Major Source — >50% of text*)	Federal Scheme, Office of Governor, Judiciary structure, Public Service Commissions (UPSC/SPSC), Emergency provisions (administrative details), Administrative details.
United Kingdom (British Constitution)	Parliamentary form of government, Rule of Law (Art. 14), Legislative procedure, **Single Citizenship**, Cabinet system, Prerogative **Writs** (Art. 32/226), Parliamentary privileges (Art. 105), **Bicameralism**, Office of Speaker & Deputy Speaker.
United States (American Constitution)	**Fundamental Rights** (Part III), Independence of Judiciary, **Judicial Review** (Art. 13), **Impeachment of the President** (Art. 61), Removal of Supreme Court & High Court judges, Post of **Vice-President** (ex-officio Chairman of Rajya Sabha), Preamble phrasing ("We the People").
Ireland (Irish Constitution 1937)	**Directive Principles of State Policy (DPSP)** (Part IV), Nomination of 12 members to Rajya Sabha by President, Method of **Election of the President** (proportional representation by STV).
Canada	Federation with a **strong Centre**, Vesting of **Residuary Powers in the Centre** (Art. 248), **Appointment of State Governors by the Centre**, Advisory jurisdiction of the Supreme Court (Art. 143).
Australia	**Concurrent List** (7th Schedule), Freedom of Trade, Commerce, and Intercourse (Part XIII), **Joint Sitting of both Houses of Parliament** (Art. 108).
Germany (Weimar Constitution)	**Suspension of Fundamental Rights during National Emergency** (Art. 359). *(Note: Emergency itself is from GOI 1935, suspension of FR is from Weimar!)*
USSR / Russia (Soviet Constitution)	**Fundamental Duties** (Art. 51A, Part IVA - 42nd Amd 1976), Ideals of **Justice (Social, Economic, and Political)** in the Preamble, Five-Year Plans.
France (French Constitution)	Ideals of **Liberty, Equality, and Fraternity** in the Preamble; **Republic** character of the Indian State.
South Africa	Procedure for **Amendment of the Constitution** (Art. 368), **Election of members of the Rajya Sabha** (by elected MLAs via STV).
Japan	Procedure established by Law (*Vidhi dwara sthapit prakriya* - Art. 21).

2. Parts of the Indian Constitution (All 25 Parts Cheat-Sheet)

Originally 22 Parts in 1950; currently 25 Parts (counting sub-parts: IVA, IXA, IXB, XIVA; Part VII repealed).

Part	Roman	Subject Matter Covered	Article Span	Key Prelims Takeaway / Recurring Trap
Part I	**I**	**The Union and its Territory**	**Arts. 1–4**	Art. 1: "India, that is Bharat, shall be a Union of States"; Art. 3: Parliament alters state boundaries/names by simple majority
Part II	**II**	**Citizenship**	**Arts. 5–11**	Single citizenship (borrowed from UK); Citizenship Act 1955
Part III	**III**	**Fundamental Rights**	**Arts. 12–35**	**"Magna Carta of India"**; borrowed from US Bill of Rights; justifiable
Part IV	**IV**	**Directive Principles of State Policy (DPSP)**	**Arts. 36–51**	Borrowed from Ireland; non-justiciable; fundamental in the governance of the country
Part IVA	**IV-A**	**Fundamental Duties**	**Art. 51A**	Added by **42nd Amendment 1976** (Swaran Singh Committee); 10 originally, 11th added by **86th Amendment 2002**; non-justiciable
Part V	**V**	**The Union Government**	**Arts. 52–151**	Ch. 1: Executive (52–78), Ch. 2: Parliament (79–122), Ch. 3: President's Legislative Power (123), Ch. 4: Union Judiciary (124–147), Ch. 5: CAG (148–151)
Part VI	**VI**	**The State Governments**	**Arts. 152–237**	Governor (153–162), State Legislature (168–212), Governor's Ordinance (213), High Courts (214–232), Subordinate Courts (233–237)
Part VII	*VII*	*States in Part B of First Schedule*	*Art. 238*	**REPEALED** by **7th Constitutional Amendment Act 1956**
Part VIII	**VIII**	**The Union Territories**	**Arts. 239–242**	Administration of UTs by President through Administrator / Lieutenant Governor; Art. 239AA: Special status to NCT of Delhi (69th Amd 1991)
Part IX	**IX**	**The Panchayats**	**Arts. 243 to 243-O**	Inserted by **73rd Amendment 1992**; 3-tier Panchayati Raj; 11th Schedule (29 functional items)
Part IXA	**IX-A**	**The Municipalities**	**Arts. 243P to 243ZG**	Inserted by **74th Amendment 1992**; Urban Local Bodies; 12th Schedule (18 functional items)
Part IXB	**IX-B**	**The Co-operative Societies**	**Arts. 243ZH to 243ZT**	Inserted by **97th Amendment 2011** (partially struck down in 2021 for state cooperatives, holds for multi-state)
Part X	**X**	**The Scheduled and Tribal Areas**	**Arts. 244–244A**	5th & 6th Schedules administration
Part XI	**XI**	**Relations between the Union and the States**	**Arts. 245–263**	Ch. 1: Legislative Relations (245–255), Ch. 2: Administrative Relations (256–263); Art. 263: Inter-State Council. **Trap: NOT municipalities or tribunals!**
Part XII	**XII**	**Finance, Property, Contracts and Suits**	**Arts. 264–300A**	Consolidated Fund (266), Contingency Fund (267), GST Council (279A), Finance Commission (280); **Art. 300A**: Right to Property (Legal/Constitutional right, NOT fundamental right!)
Part XIII	**XIII**	**Trade, Commerce and Intercourse within India**	**Arts. 301–307**	Freedom of inter-state trade and commerce
Part XIV	**XIV**	**Services under the Union and the States**	**Arts. 308–323**	All India Services (Art. 312 created by Rajya Sabha); UPSC & State PSCs (Arts. 315–323)
Part XIVA	**XIV-A**	**Tribunals**	**Arts. 323A–323B**	Added by **42nd Amendment 1976** (Swaran Singh Committee); 323A: Administrative Tribunals (CAT/SAT), 323B: Other Tribunals

Part	Roman	Subject Matter Covered	Article Span	Key Prelims Takeaway / Recurring Trap
Part XV	**XV**	**Elections**	**Arts. 324–329A**	Art. 324: Election Commission of India; Art. 326: Universal Adult Suffrage
Part XVI	**XVI**	**Special Provisions Relating to Certain Classes**	**Arts. 330–342A**	Reservation of seats in Lok Sabha & State Assemblies (SC: 330/332; ST: 330/332); NCSC (338), NCST (338A), NCBC (338B)
Part XVII	**XVII**	**Official Language**	**Arts. 343–351**	Ch. 1: Official Language of Union (343 - Hindi in Devanagari script), Ch. 2: Regional Languages (345), Ch. 3: Judiciary (348), Ch. 4: Special Directives (350A: Primary instruction in mother tongue, 350B: Special Officer for Linguistic Minorities, 351: Promotion of Hindi)
Part XVIII	**XVIII**	**Emergency Provisions**	**Arts. 352–360**	Art. 352: National Emergency, Art. 356: President's Rule (State Emergency), Art. 360: Financial Emergency
Part XIX	**XIX**	**Miscellaneous**	**Arts. 361–367**	Art. 361: Immunity of President and Governors from criminal prosecution
Part XX	**XX**	**Amendment of the Constitution**	**Art. 368**	Constituent power of Parliament to amend the Constitution (borrowed from South Africa)
Part XXI	**XXI**	**Temporary, Transitional and Special Provisions**	**Arts. 369–392**	Special provisions for states: **Art. 371 (Maha & Guj), 371A (Nagaland), 371B (Assam), 371C (Manipur), 371D & E (Andhra/Telangana), 371F (Sikkim), 371G (Mizoram), 371H (Arunachal), 371-I (Goa), 371J (Karnataka - Hyderabad-Karnataka region)**
Part XXII	**XXII**	**Short Title, Commencement & Repeals**	**Arts. 393–395**	Short title: "Constitution of India"

3. All 12 Schedules (The Master Mnemonic: TEARS OF OLD PM)

Schedule	Mnemonic Letter	Subject Matter	Key Details / High-Yield Trap
1st	**T**	**Territories**	Names of the 28 States and 8 Union Territories and their territorial extents
2nd	**E**	**Emoluments & Salaries**	Salaries, allowances, and pensions of: President, Governors, Lok Sabha Speaker/Deputy Speaker, Rajya Sabha Chairman/Deputy Chairman, SC/HC Judges, CAG. **PM and Ministers are NOT in the 2nd Schedule!**
3rd	**A**	**Affirmations & Oaths**	Forms of Oaths for: Union/State Ministers, MPs/MLAs, SC/HC Judges, CAG. **President (Art. 60), Vice-President (Art. 69), and Governors (Art. 159) have oaths under separate articles, NOT in the 3rd Schedule!**
4th	**R**	**Rajya Sabha Seat Allocation**	Allocation of seats in the Council of States to States and UTs. **Uttar Pradesh has the highest: 31 seats; Uttarakhand has 3 seats.**
5th	**S**	**Scheduled Areas & Tribes**	Administration and control of Scheduled Areas and Scheduled Tribes in 10 states (excluding the 4 states of the 6th Schedule); Tribes Advisory Council
6th	**O**	**Other Tribal Areas**	Administration of Tribal Areas in **4 North-Eastern States: AMTM = Assam, Meghalaya, Tripura, Mizoram** (Autonomous District Councils; **Manipur is NOT in the 6th Schedule!**)

Schedule	Mnemonic Letter	Subject Matter	Key Details / High-Yield Trap
7th	**F**	**Federal Lists (Division of Powers)**	Three legislative lists: 1. **Union List**: Originally 97, now **100 subjects** 2. **State List**: Originally 66, now **61 subjects** 3. **Concurrent List**: Originally 47, now **52 subjects** (Education, Forests, Weights & Measures, Wild animals & birds, Administration of justice transferred by 42nd Amd)
8th	**O**	**Official Languages**	**22 recognized languages** (Originally 14): • 1967 (21st Amd): Added **Sindhi** • 1992 (71st Amd): Added **Konkani, Manipuri, Nepali** (KMN) • 2003 (92nd Amd): Added **Bodo, Dogri, Maithili, Santhali** (BDMS) **Traps: English and Bhojpuri are NOT in the 8th Schedule!**
9th	**L**	**Land Reforms & Validation**	Added by **1st Amendment 1951** to protect land reform laws from judicial review; **I.R. Coelho Case (2007)**: SC ruled laws placed in 9th Schedule post **24 April 1973** (Kesavananda judgment date) are **open to judicial review**
10th	**D**	**Defection (Anti-Defection Law)**	Added by **52nd Amendment 1985**; disqualification on ground of defection; decided by Presiding Officer; subject to judicial review (**Kihoto Hollohan 1992**); split exemption of ⅓ deleted by 91st Amd 2003; merger requires **⅔rd members**
11th	**P**	**Panchayati Raj**	Added by **73rd Amendment 1992**; specifies **29 functional subjects** within the purview of Panchayats (Article 243G)
12th	**M**	**Municipalities**	Added by **74th Amendment 1992**; specifies **18 functional subjects** within the purview of Municipalities (Article 243W)

4. Warrant of Precedence (Order of Precedence, 1979 Notification)

Frequently tested in arrange-order questions in UPPCS/UKPCS:

1. **Rank 1**: **President of India**
2. **Rank 2**: **Vice-President of India**
3. **Rank 3**: **Prime Minister of India**
4. **Rank 4**: **Governors of States** (within their respective States)
5. **Rank 5**: **Former Presidents**
6. *Rank 5A*: **Deputy Prime Minister** (if any)
7. **Rank 6**: **Chief Justice of India (CJI)** and **Speaker of Lok Sabha** (*Both have equal rank!*)
8. **Rank 7**: **Cabinet Ministers of the Union**, **Chief Ministers of States** (within respective states), Deputy Chairman of NITI Aayog (former Planning Commission), **Leaders of Opposition in Rajya Sabha and Lok Sabha**
9. *Rank 7A*: **Holders of Bharat Ratna**
10. **Rank 8**: Ambassadors Extraordinary & Plenipotentiary, Chief Ministers (outside their respective states), Governors (outside their respective states)
11. **Rank 9**: **Judges of the Supreme Court of India**
12. *Rank 9A*: **Chief Election Commissioner (CEC)**, **Comptroller and Auditor General (CAG)**, Chairperson of UPSC
13. **Rank 10**: Deputy Chairman of Rajya Sabha, Deputy Speaker of Lok Sabha, Deputy Chief Ministers, Ministers of State of the Union
14. **Rank 11**: **Attorney General for India**, Cabinet Secretary, Lieutenant Governors (within their UTs).

5. Parliamentary Terms, Motions & Working Procedure

Parliamentary Term	Core Meaning & Procedural Rules
Question Hour	First hour of every parliamentary sitting (11:00 AM to 12:00 PM): • **Starred Questions**: Oral answers required; **supplementary questions CAN be asked** (green paper). • **Unstarred Questions**: Written answers required; **NO supplementary questions allowed** (white paper). • **Short Notice Questions**: Relates to matter of urgent public importance; asked with less than 10 days notice; answered orally (light pink paper).
Zero Hour	**Unique Indian parliamentary innovation (introduced in 1962)**; starts immediately after Question Hour (12:00 PM); members raise urgent matters without prior notice; **not mentioned in Rules of Procedure**.
Adjournment Motion	Introduced in **LOK SABHA ONLY** to draw attention to a definite matter of urgent public importance; requires support of **at least 50 members** to be admitted; sitting adjourned for debate ≥ 2.5 hours; involves censure of government.
No-Confidence Motion	Moved in **LOK SABHA ONLY** under Rule 198; requires support of **at least 50 members**; no specific grounds needed; if passed, Council of Ministers must resign.
Censure Motion	Moved in Lok Sabha against specific ministers or entire council for specific policies; requires specific grounds; if passed, government is not obligated to resign immediately but must seek confidence.
Calling Attention Motion	Indian parliamentary innovation (since 1954); calling attention of a Minister to a matter of urgent public importance and seeking an authoritative statement. Mentioned in Rules of Procedure.
Cut Motions	Moved during Budget debate (Lok Sabha only): 1. **Disapproval of Policy Cut**: Amount reduced to **Re 1** (shows complete policy rejection). 2. **Economy Cut**: Amount reduced by a specific lump sum. 3. **Token Cut**: Amount reduced by **Rs 100** to express specific grievance.
Guillotine	When time allotted for discussion on demands for grants concludes, all remaining undiscussed demands are put to vote immediately without debate.
Lame-Duck Session	Refers to the last session of the existing Lok Sabha after a new Lok Sabha has been elected. Those existing MPs who failed to get re-elected are called "Lame Ducks".
Quorum	Minimum number of members required to be present to conduct a sitting: **1/10th of total membership** of the House (55 in Lok Sabha, 25 in Rajya Sabha) per **Article 100(3)**.

6. Parliamentary Committees (Must-Memorize Facts)

Committee Name	Total Strength	Lok Sabha Members	Rajya Sabha Members	Term	Chairperson Rules & Key Functions
Public Accounts Committee (PAC)	**22**	**15**	**7**	**1 year**	Set up first in **1921** (GOI Act 1919); scrutinizes **CAG Audit Reports**; elected by PR by STV; **Ministers CANNOT be members**; by convention since **1967**, Chairperson is appointed by the Speaker from the **Opposition**; known as **"Twin sister" of Estimates Committee** and **"Friend, Philosopher, and Guide"** of the CAG.
Estimates Committee	**30**	**30**	**0 (NO RS!)**	**1 year**	Set up in **1950** on recommendation of Finance Minister **John Mathai**; **LARGEST PARLIAMENTARY COMMITTEE**; all 30 members from Lok Sabha only; examines budget estimates and suggests alternative policies ("Continuous Economy Committee"); Chairperson appointed by Speaker from ruling party.

Committee Name	Total Strength	Lok Sabha Members	Rajya Sabha Members	Term	Chairperson Rules & Key Functions
Committee on Public Undertakings (COPU)	**22**	**15**	**7**	**1 year**	Created in **1964** on recommendation of **Krishna Menon Committee**; examines reports of CAG on public undertakings; Chairperson appointed by Speaker from Lok Sabha members only.
Departmentally Related Standing Committees (DRSCs)	**31** (each)	**21**	**10**	**1 year**	Total **24 DRSCs** (16 work under Lok Sabha, 8 under Rajya Sabha); examine demands for grants, bills, and annual reports of respective ministries.

7. Constitutional Offices: Age Limits, Tenures & Appointments

Office / Position	Minimum Age Required	Retirement Age / Term of Office	Appointed By	Resignation Submitted To	Removal Procedure
President of India	**35 years**	**5 years** (eligible for re-election)	Electoral College (Elected MPs of LS/RS + Elected MLAs of States/UTs - Art. 54)	**Vice-President**	**Impeachment under Art. 61** (Quasi-judicial, 14 days notice, ⅔rd of total membership of both Houses; nominated MPs participate!)
Vice-President of India	**35 years**	**5 years**	Electoral College (All MPs of LS & RS, both elected & nominated - Art. 66; no MLAs!)	**President**	Resolution in Rajya Sabha by effective majority + agreed to by Lok Sabha (Art. 67)
Governor of a State	**35 years**	**5 years** (Holds office during **pleasure of President**)	President of India	**President**	Removed by President at any time without constitutional procedure
Prime Minister / Union Minister	**25 yrs** (LS) / **30 yrs** (RS)	No fixed tenure (during pleasure of President / confidence of LS)	President	**President**	Loss of majority in Lok Sabha
Member of Parliament (Lok Sabha)	**25 years**	**5 years** (unless dissolved earlier)	Direct Election (First-past-the-post)	**Speaker of Lok Sabha**	Disqualification under Art. 102 or 10th Schedule
Member of Parliament (Rajya Sabha)	**30 years**	**6 years** (Permanent body; **⅓rd members retire every 2 years**)	Indirect Election by elected MLAs (STV)	**Chairman of Rajya Sabha**	Disqualification under Art. 102 or 10th Schedule
Member of Legislative Assembly (MLA)	**25 years**	**5 years**	Direct Election	**Speaker of Assembly**	Disqualification under Art. 191
Member of Legislative Council (MLC)	**30 years**	**6 years** (⅓rd retire every 2 years)	Indirect (MLAs ⅓, Local bodies ⅓, Teachers 1/12, Grads 1/12, Gov nominates ⅙)	**Chairman of Council**	Disqualification under Art. 191

Office / Position	Minimum Age Required	Retirement Age / Term of Office	Appointed By	Resignation Submitted To	Removal Procedure
Panchayat / Municipality Member	**21 years**	**5 years**	Direct Election	Presiding Officer	Disqualification under state municipal/panchayat laws
Voter (Universal Adult Suffrage)	**18 years** (lowered from 21 by 61st Amd)	—	Enrolled in electoral roll	—	Ineligibility under Art. 326 (unsound mind, crime)
Supreme Court Judge / CJI	No min age	**65 years**	President (Collegium recommendation)	**President**	Removed by Presidential order supported by special majority of both Houses for proved misbehaviour or incapacity (Art. 124(4))
High Court Judge / Chief Justice	No min age	**62 years** (15th Amd raised from 60)	President (after consulting CJI, Governor, HC CJ)	**President**	Same manner and grounds as Supreme Court Judge
Comptroller & Auditor General (CAG)	No min age	**6 years or 65 years** (whichever earlier)	President	**President**	Same manner and grounds as Supreme Court Judge (Art. 148(1))
Chief Election Commissioner (CEC)	No min age	**6 years or 65 years**	President	**President**	Same manner and grounds as Supreme Court Judge (Art. 324(5))
Attorney General for India	Qualified as SC Judge	**No fixed term** (pleasure of President)	President	**President**	Removed by President at pleasure
Advocate General for the State	Qualified as HC Judge	**No fixed term** (pleasure of Governor)	Governor	**Governor**	Removed by Governor at pleasure
UPSC Chairman / Member	No min age	**6 years or 65 years**	President	**President**	Removed by President on ground of misbehaviour after inquiry by Supreme Court (Art. 317)
State PSC Chairman / Member	No min age	**6 years or 62 years**	**Governor appoints**	**Governor**	**REMOVED ONLY BY PRESIDENT** (Not Governor!) on SC inquiry under Art. 317
Central Vigilance Commissioner	No min age	**4 years or 65 years** (whichever earlier)	President on 3-member panel (PM, Home Min, LoP LS)	**President**	Removed by President on SC inquiry

8. High-Frequency Articles Must-Revise Daily

A. Fundamental Rights (Part III, Arts. 12–35)

- **Art. 12**: Definition of "State" (includes Union/State Governments, Parliament/Legislatures, Local authorities, other statutory authorities like LIC, ONGC).
- **Art. 13**: Laws inconsistent with or in derogation of Fundamental Rights shall be void (*Doctrine of Judicial Review*, *Doctrine of Severability*, *Doctrine of Eclipse*).

- **Art. 14**: Equality before law (British origin, negative concept) & Equal protection of the laws (American origin, positive concept).
- **Art. 15**: Prohibition of discrimination **ONLY** on grounds of religion, race, caste, sex, place of birth.
- *Art. 15(4)*: Special provisions for SC/ST/OBC (1st Amd 1951).
- *Art. 15(6)*: 10% EWS reservation in educational institutions (103rd Amd 2019).
- **Art. 16**: Equality of opportunity in matters of public employment.
- *Art. 16(4)*: Reservation for backward classes not adequately represented.
- *Art. 16(6)*: 10% EWS reservation in public employment (103rd Amd 2019).
- **Art. 17**: **Abolition of Untouchability** (Absolute right; enforced via Protection of Civil Rights Act 1955).
- **Art. 18**: Abolition of titles (Bharat Ratna/Padma awards are decorations, not titles — *Balaji Raghavan Case 1996*).
- **Art. 19**: Protection of **Six Democratic Freedoms**:
- *19(1)(a)*: Freedom of speech and expression (includes freedom of press, right to remain silent).
- *19(1)(b)*: Freedom to assemble peaceably and without arms.
- *19(1)©*: Freedom to form associations, unions, or co-operative societies (97th Amd).
- *19(1)(d)*: Freedom to move freely throughout the territory of India.
- *19(1)(e)*: Freedom to reside and settle in any part of the territory of India.
- *19(1)(g)*: Freedom to practice any profession, trade, or business.
- *(Note: 19(1)(f) Right to acquire, hold, and dispose of property was REPEALED by 44th Amd 1978).*
- **Art. 20**: Protection in respect of conviction for offences:
- *20(1)*: No ex-post-facto criminal law.
- *20(2)*: No double jeopardy (cannot be prosecuted twice for the same offence).
- *20(3)*: No self-incrimination (cannot be compelled to be a witness against oneself).
- **Art. 21**: **Protection of Life and Personal Liberty** (*Procedure Established by Law → Due Process of Law* via *Maneka Gandhi Case 1978*; encompasses Right to Privacy - *Puttaswamy 2017*, Right to clean environment, Right to livelihood, Right to sleep, Right to die with dignity / passive euthanasia - *Common Cause 2018*).
- **Art. 21A**: **Right to Free and Compulsory Education** for children aged 6 to 14 years (Inserted by **86th Amendment 2002**; RTE Act enacted in 2009, in force 1 April 2010).
- **Art. 22**: Protection against arrest and detention (production before magistrate within 24 hours; preventive detention max 3 months without advisory board approval).
- **Art. 23**: Prohibition of traffic in human beings and **Begar** (forced labour).
- **Art. 24**: Prohibition of employment of children **below 14 years in factories, mines**, or hazardous employment.
- **Arts. 25–28**: Freedom of Religion:
- *Art. 25*: Freedom of conscience, free profession, practice, and propagation of religion.
- *Art. 26*: Freedom to manage religious affairs.
- *Art. 27*: Freedom from payment of taxes for promotion of any particular religion.
- *Art. 28*: Freedom from attendance at religious instruction in state-funded educational institutions.
- **Arts. 29–30**: Cultural and Educational Rights of Minorities:
- *Art. 29*: Protection of language, script, and culture of minorities.
- *Art. 30*: Right of religious and linguistic minorities to establish and administer educational institutions.
- **Art. 32**: **Right to Constitutional Remedies**: Power of Supreme Court to issue 5 Writs (**Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo-Warranto**); Dr. B.R. Ambedkar called Article 32 the **"Heart and Soul of the Constitution"**.

> **NON-SUSPENDABLE RIGHTS:** Under **Article 359 (as amended by 44th Amd 1978)**, the President **CANNOT suspend the enforcement of Articles 20 and 21** even during a National Emergency!

B. Directive Principles of State Policy (DPSP, Part IV, Arts. 36–51)

- **Art. 38**: State to secure a social order for the promotion of welfare of the people (minimize inequalities).

- **Art. 39(b) & ©**: Equitable distribution of material resources of the community to subserve common good (39b); prevention of concentration of wealth (39c) — *Articles 39(b) and 39© take precedence over Articles 14 and 19 per Art. 31C!*
- **Art. 39A**: **Equal justice and free legal aid** (Added by 42nd Amd 1976; Legal Services Authorities Act 1987 / NALSA).
- **Art. 40**: **Organization of Village Panchayats** (Gandhian principle).
- **Art. 41**: Right to work, to education, and to public assistance in cases of unemployment, old age, sickness.
- **Art. 42**: Provision for just and humane conditions of work and **Maternity relief**.
- **Art. 43**: Living wage and decent standard of life for workers.
- **Art. 43A**: **Participation of workers in management of industries** (Added by 42nd Amd 1976).
- **Art. 43B**: Promotion of **Co-operative societies** (Added by 97th Amd 2011).
- **Art. 44**: **Uniform Civil Code (UCC)** for all citizens (**Goa** had Portuguese civil code; **Uttarakhand became the first state in post-independence India to pass a UCC bill in 2024!**).
- **Art. 45**: Provision for early childhood care and education for all children until they complete the age of **6 years** (Amended by 86th Amd 2002).
- **Art. 48**: Organization of agriculture and animal husbandry; prohibiting slaughter of cows, calves, and milch cattle.
- **Art. 48A**: **Protection and improvement of environment, and safeguarding of forests and wildlife** (Added by 42nd Amd 1976).
- **Art. 50**: **Separation of Judiciary from the Executive** in the public services of the State.
- **Art. 51**: Promotion of international peace and security.

C. Union & State Executive / Legislature Comparisons

Constitutional Matter	Union Article (President / Parliament)	State Article (Governor / State Legislature)	Key Distinction / Comparison
Office of Head	**Art. 52**: President of India	**Art. 153**: Governor of a State	7th Amd 1956: Same person can be appointed Governor for two or more states
Executive Power	**Art. 53**: Vested in President	**Art. 154**: Vested in Governor	Governor is appointed by President (Canadian model); holds office during pleasure
Pardoning Power	**Art. 72**: President of India	**Art. 161**: Governor of a State	**President alone can pardon Death Sentences and Court Martial (Military) sentences.** Governor can suspend/remit, but cannot grant full pardon for death sentence
Council of Ministers	**Art. 74**: CoM to aid & advise	**Art. 163**: CoM to aid & advise	Governor has broader constitutional discretionary powers (Art. 163(2))
Appointment of PM/CM	**Art. 75**: PM appointed by President	**Art. 164**: CM appointed by Governor	CoM size capped at **max 15%** of Lower House membership (91st Amd 2003); State min = 12
Top Legal Officer	**Art. 76**: **Attorney General for India**	**Art. 165**: **Advocate General for the State**	AG has right to speak in both Houses of Parliament but **NO right to vote** (Art. 88)
Joint Sitting	**Art. 108**: Joint Sitting of Parliament	**NO PROVISION** for Joint Sitting in State Legislature!	Summoned by President; presided over by **Lok Sabha Speaker** (simple majority)
Money Bill Definition	**Art. 110**: Money Bill in Parliament	**Art. 199**: Money Bill in State Assembly	Speaker's decision is final; Rajya Sabha / Legislative Council has only **14 days** to suggest
Annual Budget	**Art. 112**: Annual Financial Statement	**Art. 202**: Annual Financial Statement	Word "Budget" is nowhere used in the Constitution!
Ordinance Power	**Art. 123**: President	**Art. 213**: Governor	Can only be promulgated when legislature is not in session; max lifespan: **6 weeks from reassembly** (absolute maximum lifespan = 6 months + 6 weeks)

Constitutional Matter	Union Article (President / Parliament)	State Article (Governor / State Legislature)	Key Distinction / Comparison
Assent to Bills	**Art. 111**: President's Assent	**Art. 200**: Governor's Assent	Governor can reserve bill for consideration of President (**Art. 201**)
Creation/Abolition of Council	—	**Art. 169**: Legislative Council	State Assembly passes resolution by special majority → Parliament approves by simple majority

9. Constitutional vs Statutory vs Executive Bodies

Body Name	Category	Governing Article / Parent Act	Head / Composition	Appointed By	Removal / Tenure
Election Commission of India (ECI)	**Constitutional**	**Art. 324**	Chief Election Commissioner + 2 Election Commissioners	President (per 2023 Act: panel of PM, LoP, Cabinet Min)	Same grounds and manner as Supreme Court Judge (6 yrs or 65 yrs)
Union Public Service Commission (UPSC)	**Constitutional**	**Arts. 315–323**	Chairman + Members (usually 9–11)	President	6 yrs or 65 yrs; removed by President on SC enquiry under Art. 317
Finance Commission	**Constitutional**	**Art. 280**	Chairman + 4 Members	President every 5th year	Recommends devolution of net tax proceeds between Union & States
Comptroller & Auditor General (CAG)	**Constitutional**	**Art. 148**	Single-member office	President	6 yrs or 65 yrs; removed like a Supreme Court Judge; **"Guardian of the Public Purse"**
Attorney General for India	**Constitutional**	**Art. 76**	Single-member office	President	Holds office **during the pleasure of the President**; must be qualified to be an SC Judge
Advocate General for the State	**Constitutional**	**Art. 165**	Single-member office	Governor	Holds office **during the pleasure of the Governor**; qualified to be an HC Judge
National Commission for SC (NCSC)	**Constitutional**	**Art. 338**	Chairperson, Vice-Chairperson + 3 Members	President	3 years tenure
National Commission for ST (NCST)	**Constitutional**	**Art. 338A**	Separated by 89th Amd 2003; Chairperson + 4	President	3 years tenure
National Commission for BC (NCBC)	**Constitutional**	**Art. 338B**	Accorded constitutional status by 102nd Amd 2018	President	3 years tenure

Body Name	Category	Governing Article / Parent Act	Head / Composition	Appointed By	Removal / Tenure
GST Council	**Constitutional**	**Art. 279A**	Chaired by Union Finance Minister; members: MoS Finance + State Finance Ministers	-	Voting weight: Centre = ⅓rd, States = ⅔rd; ¾th majority needed to pass decisions
Inter-State Council	**Constitutional**	**Art. 263**	Set up in 1990 (**Sarkaria Commission**); chaired by Prime Minister	-	CMs of all states + 6 Union Cabinet Ministers
National Human Rights Commission (NHRC)	**Statutory**	**Protection of Human Rights Act (PHRA) 1993**	Retired CJI or Judge of SC (Chairperson) + Members	President on panel (PM, Speaker, Home Min, LoP LS, LoP RS, Dy Chairman RS)	3 years or 70 years
Central Vigilance Commission (CVC)	**Statutory**	**CVC Act 2003** (set up 1964 on **Santhanam Committee**)	Central Vigilance Commissioner + max 2 Vigilance Commissioners	President on panel (PM, Home Minister, LoP LS)	**4 years or 65 years** (Unique tenure!)
Central Information Commission (CIC)	**Statutory**	**Right to Information (RTI) Act 2005**	Chief Information Commissioner + max 10 ICs	President on panel (PM, LoP LS, Union Cabinet Min)	Set by Central Govt or 65 yrs
Lokpal of India	**Statutory**	**Lokpal and Lokayuktas Act 2013**	Chairperson (CJI/SC Judge/eminent person) + max 8 Members	President on panel (PM, Speaker LS, LoP LS, CJI or nominee, eminent jurist)	5 years or 70 years
National Green Tribunal (NGT)	**Statutory**	**NGT Act 2010**	Chairperson (retired SC judge or HC CJ) + Judicial/Expert members	Central Govt in consultation with CJI	5 years; not eligible for reappointment
NITI Aayog	**Non-Constitutional (Executive Body)**	Created by **Union Cabinet Resolution on 1 Jan 2015** (replacing Planning Commission 1950)	Chairperson: Prime Minister; Vice-Chairperson + CEO + Ex-officio members	PM appoints	Think tank; promotes Cooperative & Competitive Federalism

10. Landmark Constitutional Amendments (The Complete PCS Sheet)

Amendment Act & Year	Prime Minister / Context	Landmark Provisions / Changes Made
1st (1951)	J.L. Nehru	Added **9th Schedule** to protect land reform laws from judicial review; placed reasonable restrictions on freedom of speech (public order, friendly relations with foreign states, incitement to an offence)
7th (1956)	J.L. Nehru	Implemented **States Reorganisation Act 1956** (Fazal Ali Commission); abolished Part A, B, C, D classification; created 14 States & 6 UTs; allowed common High Court for two or more states; allowed same person as Governor of multiple states

Amendment Act & Year	Prime Minister / Context	Landmark Provisions / Changes Made
24th (1971)	Indira Gandhi	Affirmed Parliament's power to amend any part of the Constitution, including Fundamental Rights; made it **obligatory for the President to give assent** to a Constitutional Amendment Bill
42nd (1976)	Indira Gandhi (**Swaran Singh Committee**)	Known as the **"Mini-Constitution"**: 1. Preamble: Added words **"SOCIALIST, SECULAR, INTEGRITY"** 2. Added **Part IVA (Fundamental Duties, Art. 51A)** with 10 duties 3. Added **Part XIVA (Tribunals, Arts. 323A–323B)** 4. Added DPSPs: Arts. **39A** (Free legal aid), **43A** (Workers' participation), **48A** (Environment) 5. Transferred **5 subjects from State List to Concurrent List**: Education, Forests, Weights & Measures, Protection of Wild Animals & Birds, Administration of Justice
44th (1978)	Morarji Desai (Janata Party)	Undid emergency excesses of 42nd Amendment: 1. Replaced "Internal Disturbance" with **"Armed Rebellion"** in Art. 352 2. Mandated that President can declare National Emergency only on **written advice of the Cabinet** 3. **Right to Property deleted from Fundamental Rights** (Art. 19(1)(f) & Art. 31 deleted; made a legal right under **Art. 300A**) 4. Provided that **Articles 20 and 21 CANNOT be suspended** during emergency
52nd (1985)	Rajiv Gandhi	Added **10th Schedule (Anti-Defection Law)**; disqualified MPs/MLAs defecting from their political party
61st (1988)	Rajiv Gandhi	**Lowered voting age from 21 years to 18 years** for Lok Sabha and Legislative Assembly elections (amended **Art. 326**)
69th (1991)	P.V. Narasimha Rao	Conferred special status on Union Territory of Delhi as **National Capital Territory of Delhi (NCT)** with Legislative Assembly and 7-member Council of Ministers (inserted **Art. 239AA**)
73rd (1992)	P.V. Narasimha Rao	Accorded constitutional status to **Panchayati Raj Institutions (PRIs)**; inserted **Part IX (Arts. 243 to 243-O)** and **11th Schedule (29 subjects)**; 33% mandatory reservation for women
74th (1992)	P.V. Narasimha Rao	Accorded constitutional status to **Urban Local Bodies (Municipalities)**; inserted **Part IXA (Arts. 243P to 243ZG)** and **12th Schedule (18 subjects)**
86th (2002)	A.B. Vajpayee	1. Inserted **Article 21A** (Right to free and compulsory education for children aged 6–14 as a Fundamental Right) 2. Substituted Article 45 (Early childhood care) 3. Added **11th Fundamental Duty** under **Art. 51A(k)**
91st (2003)	A.B. Vajpayee	1. Capped the size of the Council of Ministers to **maximum 15%** of the total strength of Lok Sabha / State Legislative Assembly (minimum 12 in states) 2. **Deleted ⅓rd split provision** from 10th Schedule (only ⅔rd merger protected)
99th (2014)	Narendra Modi	Established National Judicial Appointments Commission (NJAC); **struck down as unconstitutional by Supreme Court in 2015** (*Fourth Judges Case*), restoring the Collegium system
101st (2016)	Narendra Modi	Introduced **Goods and Services Tax (GST)**; inserted **Art. 246A, 269A, and 279A** (GST Council chaired by Union Finance Minister); in force from **1 July 2017**
102nd (2018)	Narendra Modi	Accorded constitutional status to the **National Commission for Backward Classes (NCBC)**; inserted **Articles 338B and 342A**
103rd (2019)	Narendra Modi	Provided **10% reservation for Economically Weaker Sections (EWS)** in educational admissions and civil posts; amended **Articles 15(6) and 16(6)**

Amendment Act & Year	Prime Minister / Context	Landmark Provisions / Changes Made
104th (2020)	Narendra Modi	Extended reservation of seats for **SC and ST in Lok Sabha and State Assemblies for another 10 years (until 2030)**; **discontinued the nomination of 2 Anglo-Indian members** in Lok Sabha and 1 in Assemblies
105th (2021)	Narendra Modi	Clarified that State Governments maintain the power to prepare and maintain their own list of **Socially and Educationally Backward Classes (SEBCs / OBCs)**
106th (2023)	Narendra Modi	***Nari Shakti Vandan Adhiniyam***: Provides **33% reservation for women in Lok Sabha, State Legislative Assemblies, and NCT of Delhi Assembly** (inserted Arts. 330A, 332A, 239AA(2)(b)); effective after the next delimitation exercise

11. Panchayati Raj Committees Chronological Ladder

Committee Name	Year	Landmark Recommendation / Impact
Balwant Rai Mehta Committee	**1957**	Recommended **Three-Tier Panchayati Raj System**: 1. Gram Panchayat (Village) 2. Panchayat Samiti (Block - executive body) 3. Zilla Parishad (District - advisory body) **First implemented in Nagaur (Rajasthan) on 2 October 1959** by J.L. Nehru; second state was **Andhra Pradesh**
K. Santhanam Committee	**1963**	Panchayati Raj finances and budgetary powers
Ashok Mehta Committee	**1977** (Janata Govt)	Recommended **Two-Tier System**: 1. **Mandal Panchayat** (group of villages, pop. 15,000–20,000) 2. **Zilla Parishad** (District executive body) Advocated official participation of political parties in elections
G.V.K. Rao Committee	**1985** (Planning Commission)	Critiqued bureaucratic takeover, describing PRIs as **"Grass without Roots"**; recommended strengthening Zilla Parishad and creating post of District Development Commissioner (DDC)
L.M. Singhvi Committee	**1986** (Rajiv Gandhi)	**FIRST TO STRONGLY RECOMMEND CONSTITUTIONAL RECOGNITION FOR PANCHAYATI RAJ**; advocated Nyaya Panchayats and financial autonomy
P.K. Thungon Committee	**1988**	Sub-committee of Parliamentary Consultative Committee; strongly urged **Constitutional status**, 3-tier system, fixed 5-year tenure, Zilla Parishad as main planning agency
V.N. Gadgil Committee	**1988**	Blueprint for the 73rd Amendment bill: 3 tiers, fixed 5-yr tenure, reservation for SC/ST/Women, State Election Commission, State Finance Commission

12. Landmark Supreme Court Judgments (Chronological Table)

Case Name & Year	Key Issue / Doctrine Established
Shankari Prasad Case (1951)	Parliament can amend any part of the Constitution, including Fundamental Rights under Article 368.
Golaknath Case (1967)	11-Judge bench; ruled that **Fundamental Rights are transcendental and sacrosanct**; Parliament CANNOT amend or take away Fundamental Rights.
Kesavananda Bharati Case (1973)	**13-Judge bench (largest ever, 7:6 verdict on 24 April 1973)**; upheld Parliament's power to amend the Constitution, BUT established the **"Basic Structure Doctrine"** — Parliament cannot alter the basic framework/features of the Constitution.

Case Name & Year	Key Issue / Doctrine Established
Indira Nehru Gandhi v. Raj Narain (1975)	Struck down 39th Amendment (Article 329A); held that **Free and Fair Elections and Judicial Review are part of the Basic Structure**.
Maneka Gandhi Case (1978)	Reinterpreted Article 21; replaced rigid "Procedure Established by Law" with **"Due Process of Law"**; procedure must be *just, fair, and reasonable*. Golden Triangle: Articles 14, 19, and 21 are interrelated.
Minerva Mills Case (1980)	Struck down clauses of 42nd Amendment; held that **limited amending power and judicial review are basic features**; Indian Constitution is founded on the bedrock of **balance between Fundamental Rights and DPSPs**.
Waman Rao Case (1981)	Reaffirmed Basic Structure Doctrine; set cutoff date of **24 April 1973** for applying Basic Structure scrutiny to the 9th Schedule.
Shah Bano Case (1985)	Upheld divorced Muslim woman's right to maintenance under Section 125 CrPC; urged enactment of a Uniform Civil Code.
Indira Sawhney Case (1992) (*Mandal Case*)	9-Judge bench; upheld 27% OBC reservation; introduced **"Creamy Layer"** exclusion; capped **total reservations at 50%**; no reservation in promotions.
S.R. Bommai Case (1994)	9-Judge bench; curbed misuse of **Article 356 (President's Rule)**; held that **Secularism is part of the Basic Structure**; floor test in Assembly is the only valid test of majority.
Vishaka v. State of Rajasthan (1997)	Formulated **Vishaka Guidelines** to prevent sexual harassment of women at workplaces (precursor to POSH Act 2013).
I.R. Coelho Case (2007)	9-Judge bench; held that all laws inserted into the **9th Schedule after 24 April 1973 are subject to judicial review** if they violate Fundamental Rights forming part of the Basic Structure.
Justice K.S. Puttaswamy Case (2017)	9-Judge bench unanimously held that the **Right to Privacy is a Fundamental Right** intrinsically protected under Article 21.
Navtej Singh Johar Case (2018)	Decriminalized consensual homosexual acts between adults by reading down **Section 377 of the Indian Penal Code (IPC)**.
Jarnail Singh Case (2018)	Held that the **"Creamy Layer" principle applies to SC/ST** when extending reservation in promotions.
Janki Janak v. UOI (2022)	Upheld the constitutional validity of the **103rd Constitutional Amendment (10% EWS reservation)** by 3:2 majority.

13. State Reorganization Chronology (Post-Independence India)

1. **1953**: **Andhra State** created (first linguistic state, separated Telugu-speaking areas of Madras after 56-day fast unto death of **Potti Sreeramulu**; Kurnool capital).
2. **1956**: **States Reorganisation Act 1956** (Fazal Ali Commission with H.N. Kunzru and K.M. Panikkar); created **14 States and 6 Union Territories**.
3. **1960**: **Bilingual Bombay State bifurcated into Maharashtra and Gujarat** (Gujarat became the 15th state).
4. **1961**: **Dadra & Nagar Haveli** (10th Amd) and **Goa, Daman & Diu** (12th Amd) integrated via Operation Vijay.
5. **1962**: **Pondicherry** (Puducherry) integrated via 14th Amd (ceded by French in 1954).
6. **1963**: **Nagaland** created as 16th state (incorporating Naga Hills-Tuensang Area).
7. **1966**: **Punjab bifurcated** into Punjab (Punjabi) and **Haryana** (17th state, Hindi) on recommendation of **Shah Commission**; **Chandigarh** made common UT.
8. **1971**: **Himachal Pradesh** elevated from UT to 18th State.
9. **1972**: North-Eastern reorganization: **Manipur (19th), Tripura (20th), and Meghalaya (21st)** became full states; Mizoram and Arunachal Pradesh created as UTs.

10. **1975**: **Sikkim**: 35th Amd 1974 made it "Associate State" (10th Schedule added); **36th Amendment 1975 made Sikkim 22nd full State of India**.
11. **1987**: **Mizoram (23rd)**, **Arunachal Pradesh (24th)**, and **Goa (25th state)** elevated to full statehood.
12. **2000 (November)**: Three new states carved out:
    - **Chhattisgarh (26th state)**: 1 Nov 2000 (carved from MP).
    - **Uttarakhand (Uttaranchal, 27th state)**: **9 Nov 2000** (carved from Uttar Pradesh, 13 hill districts; renamed Uttarakhand on 1 Jan 2007).
    - **Jharkhand (28th state)**: 15 Nov 2000 (carved from Bihar on Birsa Munda's birth anniversary).
13. **2014 (2 June)**: **Telangana (29th state)** carved out of Andhra Pradesh (Sri Krishna Committee).
14. **2019 (31 October)**: **Jammu & Kashmir Reorganisation Act 2019**: State of J&K bifurcated into **two Union Territories: J&K (with assembly) and Ladakh (without assembly)**; total count: **28 States and 8 Union Territories**.
15. **2020 (26 Jan)**: Merged **Dadra & Nagar Haveli and Daman & Diu** into a single Union Territory.

> **From–to (do not stop at the birth year): Uttarakhand** as a state runs **9 Nov 2000 → present** (name **Uttaranchal** till **1 Jan 2007**). **Jammu & Kashmir as a State** ran till **31 Oct 2019**; **Art. 370** operative **1950 → ⅝ Aug 2019**. Goa was a UT **1961–1987**, then the **25th state**.

14. UP & Uttarakhand State Legislature Quick Facts

State	Legislative Assembly (Vidhan Sabha)	Legislative Council (Vidhan Parishad)	Lok Sabha Seats	Rajya Sabha Seats	High Court & Benches
Uttar Pradesh	**403 seats** (SC: 84, ST: 2)	**100 seats** (Bicameral!)	**80 seats** (Highest in India; SC reserved: 17, ST: 0)	**31 seats** (Highest in India)	**Allahabad High Court** (Established 1866 at Agra, shifted to Allahabad 1869; Lucknow Bench created 1948)
Uttarakhand	**70 seats** (SC: 13, ST: 2)	**Unicameral** (No Council)	**5 seats** (Tehri, Garhwal, Almora - SC, Haridwar, Nainital-US Nagar)	**3 seats**	**Uttarakhand High Court** (Established 9 Nov 2000 at Nainital; shifting to Haldwani approved)

15. The Five Types of Writs (Articles 32 & 226)

Power to issue prerogative writs: Supreme Court (Article 32 — only for Fundamental Rights) and High Courts (Article 226 — for Fundamental Rights AND ordinary legal rights; HC writ jurisdiction is wider than SC!)

Writ Name	Literal Latin Meaning	Purpose & Grounds for Issue	Against Whom Issued	Exceptions (Cannot be Issued Against)
Habeas Corpus (बन्दी प्रत्यक्षीकरण)	**"To have the body of"**	Remedy against **unlawful detention or illegal custody**; court orders the detaining authority to produce the detained person before it to examine legality of detention	**Both Public Authorities and Private Individuals**	1. Detention is lawful 2. Proceeding is for contempt of court/legislature 3. Detention is by competent court 4. Outside court's territorial jurisdiction

Writ Name	Literal Latin Meaning	Purpose & Grounds for Issue	Against Whom Issued	Exceptions (Cannot be Issued Against)
Mandamus (परमादेश)	**"We Command"**	Order issued to a public official/body directing them to **perform an official public duty** which they have failed or refused to perform	**Public officials, Public Corporations, Inferior Courts, Tribunals, Government**	1. **Private individuals or private bodies** 2. Discretionary duties (not mandatory) 3. To enforce private contracts 4. **President of India or State Governors** (Art. 361) 5. Chief Justice of HC acting in judicial capacity
Prohibition (प्रतिषेध)	**"To Forbid"**	Issued by a higher court to a lower court/tribunal to **prevent it from exceeding its jurisdiction** or usurping a jurisdiction not vested in it; preventive in nature	**Judicial and Quasi-Judicial Authorities only**	Administrative authorities, legislative bodies, and private individuals/bodies
Certiorari (उत्प्रेषण)	**"To be Certified" / "To be Informed"**	Issued by a higher court to a lower court/tribunal to **quash an order already passed** in excess of jurisdiction, lack of jurisdiction, or violation of natural justice; both **preventive and curative**	**Judicial, Quasi-Judicial, and Administrative Authorities** (SC expanded to administrative bodies in 1991)	Legislative bodies and private individuals/bodies
Quo-Warranto (अधिकार-पृच्छा)	**"By What Authority or Warrant"**	Issued to enquire into the **legality of the claim of a person to a public office**; prevents illegal usurpation of a substantive public office	**Substantive Public Offices of a permanent nature created by statute/Constitution**	Ministerial offices (PM/Minister), private offices. *(Can be sought by ANY interested person, not necessarily the aggrieved party!)*

16. Constituent Assembly Committees & Drafting Committee Members

A. Major Committees & Their Chairpersons (High-Frequency Match)

Committee Name	Chairperson	Scope & Responsibility
Drafting Committee (प्रारूप समिति)	**Dr. B.R. Ambedkar**	Prepared the draft of the Constitution; appointed on **29 August 1947**
Union Powers Committee	**Jawaharlal Nehru**	Defined the extent of Union legislative authority
Union Constitution Committee	**Jawaharlal Nehru**	Drafted structure of the Union Executive and Parliament
States Committee (Committee for Negotiating with States)	**Jawaharlal Nehru**	Negotiations with Princely States
Provincial Constitution Committee	**Sardar Vallabhbhai Patel**	Drafted structure of State Governors and Legislatures

Committee Name	Chairperson	Scope & Responsibility
Advisory Committee on Fundamental Rights, Minorities & Tribal Areas	**Sardar Vallabhbhai Patel**	Apex advisory body with 5 sub-committees: • *Fundamental Rights Sub-Committee*: **J.B. Kripalani** • *Minorities Sub-Committee*: **H.C. Mukherjee** • *North-East Frontier Tribal Areas*: **Gopinath Bardoloi** • *Excluded & Partially Excluded Areas*: **A.V. Thakkar**
Rules of Procedure Committee	**Dr. Rajendra Prasad**	Formulated rules for conduct of assembly business
Steering Committee	**Dr. Rajendra Prasad**	Steered legislative agenda and debates
Ad-hoc Committee on the National Flag	**Dr. Rajendra Prasad**	Adopted the National Flag on **22 July 1947**
Order of Business Committee	**Dr. K.M. Munshi**	Scheduled daily proceedings

B. The 7 Members of the Drafting Committee (Must-Memorize List)

Set up on 29 August 1947 under the chairmanship of Dr. B.R. Ambedkar:

1. **Dr. B.R. Ambedkar** (Chairman)
2. **N. Gopalaswami Ayyangar**
3. **Alladi Krishnaswamy Iyer**
4. **Dr. K.M. Munshi** (Only original Congress politician member)
5. **Syed Mohammad Saadulla** (Only Muslim League member)
6. **N. Madhava Rau** (Replaced **B.L. Mitter** who resigned due to ill-health)
7. **T.T. Krishnamachari** (Replaced **D.P. Khaitan** who died in 1948)

> **Constitutional Adviser**: **Sir B.N. Rau** (prepared original constitutional draft).
> **Chief Draftsman**: **S.N. Mukherjee**.
> **Calligrapher of English text**: **Prem Behari Narain Raizada** (flowery italic style).
> **Illuminator / Decorator**: **Nandalal Bose** and **Beohar Rammanohar Sinha** (Santiniketan artists).
> **Hindi Calligrapher**: **Vasant Krishan Vaidya** (decorated by Nandalal Bose).

17. Center-State Relations & Inter-State River Water Dispute Tribunals

A. Major Commissions on Center-State Relations

Commission / Committee	Year	Appointed By / State	Key Recommendations / Landmark Findings
Administrative Reforms Commission (ARC-I)	**1966**	Central Govt (Morarji Desai → K. Hanumanthaiah)	Recommended setting up of an **Inter-State Council under Article 263**; non-partisan Governors
Rajamannar Committee	**1969**	**Tamil Nadu Govt** (DMK, Dr. P.V. Rajamannar)	Strongly advocated State Autonomy; recommend immediate deletion of **Articles 356 and 365**; vesting residuary powers in States; abolishing All-India Services (IAS/IPS)
Anandpur Sahib Resolution	**1973**	Akali Dal (Punjab)	Demanded restriction of Central jurisdiction strictly to **Defence, Foreign Affairs, Currency, and Communications**
West Bengal Memorandum	**1977**	Left Front Govt (WB)	Demanded word "Union" be replaced by "Federation"; 75% of central revenues to states

Commission / Committee	Year	Appointed By / State	Key Recommendations / Landmark Findings
Sarkaria Commission	**1983–1987**	Central Govt (Justice **R.S. Sarkaria**, B. Sivaraman, Dr. S.R. Sen)	**MOST INFLUENTIAL COMMISSION**: 1. **Article 356 must be used sparingly, only as a measure of last resort** 2. Institutionalize **Inter-State Council** under Art. 263 (established 1990) 3. Governor should be an eminent person from outside the state, detached from active politics, appointed after consulting CM 4. Opposed abolishing All-India Services, advocated strengthening them 5. Residuary legislative powers should remain with Centre (except taxation)
Punchhi Commission	**2007–2010**	Central Govt (Justice **M.M. Punchhi**)	1. Localized emergency (targeted under Art. 355/356 without dissolving state assembly) 2. Governor's tenure: fixed 5 years, removal only through impeachment by State Legislature 3. Governor should not be Chancellor of state universities

B. Inter-State River Water Disputes (Article 262)

Inter-State River Water Disputes Act 1956 empowers Central Govt to set up ad-hoc tribunals; jurisdiction of Supreme Court is barred:

Water Dispute Tribunal	Year Set Up	Riparian States Involved in Dispute
Krishna Water Dispute Tribunal I & II	1969 / 2004	Maharashtra, Karnataka, Andhra Pradesh, Telangana
Godavari Water Dispute Tribunal	1969	Maharashtra, Andhra Pradesh, MP, Chhattisgarh, Odisha, Karnataka
Narmada Water Dispute Tribunal	1969	Gujarat, Madhya Pradesh, Maharashtra, Rajasthan
Ravi & Beas Water Dispute Tribunal	1986	Punjab, Haryana, Rajasthan
Cauvery Water Dispute Tribunal	1990	Tamil Nadu, Karnataka, Kerala, Puducherry
Mahadayi (Mandovi) Tribunal	2010	Goa, Karnataka, Maharashtra
Vansadhara Water Dispute Tribunal	2010	Odisha and Andhra Pradesh
Mahanadi Water Dispute Tribunal	2018	Chhattisgarh and Odisha

▶ **Confused Pairs & Common Traps** (Click to Expand)

Practice Zone — UPPCS Format Drill

Q1. The concept of 'Joint Sitting of both Houses of Parliament' and 'Concurrent List' in the Indian Constitution was borrowed from the Constitution of:

A. Canada B. Australia C. United Kingdom D. United States

▼ Show answer

Ans: B — Both the 'Concurrent List' (Seventh Schedule) and the provision for 'Joint Sitting of both Houses of Parliament' (Article 108) were borrowed from the Australian Constitution.

Q2. Which of the following pairs of source country and constitutional feature is NOT correctly matched?

A. Ireland — Directive Principles of State Policy B. Germany (Weimar) — Suspension of Fundamental Rights during Emergency C. South Africa — Procedure for Amendment of the Constitution D. Canada — Fundamental Duties

▼ Show answer

Ans: D — Fundamental Duties (Article 51A, Part IVA) were inspired by the USSR (Soviet) Constitution, incorporated by the 42nd Amendment Act 1976. Canada was the source for a Federation with a strong Centre and vesting of Residuary Powers in the Centre (Article 248).

Q3. With reference to the Parts of the Indian Constitution, consider the following pairs: 1. Part IX — The Panchayats 2. Part IXA — The Municipalities 3. Part XI — Relations between the Union and the States 4. Part XIVA — Tribunals

Which of the pairs given above are correctly matched?

A. 1, 2 and 3 only B. 2 and 4 only C. 1, 3 and 4 only D. 1, 2, 3 and 4

▼ Show answer

Ans: D — All four pairs are correctly matched. Part IX (Panchayats - 73rd Amd), Part IXA (Municipalities - 74th Amd), Part XI (Union-State relations), and Part XIVA (Tribunals - 42nd Amd).

Q4. Which language was added to the Eighth Schedule of the Constitution by the 21st Constitutional Amendment Act, 1967?

A. Sindhi B. Konkani C. Manipuri D. Nepali

▼ Show answer

Ans: A — Sindhi was added as the 15th language by the 21st Constitutional Amendment Act, 1967. Konkani, Manipuri, and Nepali were added later by the 71st Amendment (1992). Bodo, Dogri, Maithili, and Santhali were added by the 92nd Amendment (2003).

Q5. In which landmark judgment did a 9-judge bench of the Supreme Court rule that laws included in the Ninth Schedule after 24 April 1973 are subject to judicial review if they violate the Basic Structure?

A. Shankari Prasad Case (1951) B. Kesavananda Bharati Case (1973) C. Minerva Mills Case (1980) D. I.R. Coelho Case (2007)

▼ Show answer

Ans: D — In I.R. Coelho v. State of Tamil Nadu (2007), a 9-judge bench held that any law placed in the 9th Schedule after the date of the Kesavananda Bharati judgment (24 April 1973) is open to challenge if it violates Fundamental Rights forming part of the basic structure.

Q6. Under the Sixth Schedule of the Indian Constitution, special provisions for the administration of tribal areas are provided for which group of North-Eastern States?

A. Assam, Nagaland, Manipur, and Mizoram B. Assam, Meghalaya, Tripura, and Mizoram C. Arunachal Pradesh, Meghalaya, Manipur, and Tripura D. Assam, Manipur, Meghalaya, and Nagaland

▼ Show answer

Ans: B — The Sixth Schedule applies to tribal areas in four states: Assam, Meghalaya, Tripura, and Mizoram (mnemonic: AMTM). Manipur and Nagaland are NOT covered under the Sixth Schedule.

Q7. In the official Warrant of Precedence (Table of Precedence) of the Government of India, which two dignitaries occupy the SAME rank (Rank 6)?

A. Prime Minister and Former Presidents B. Chief Justice of India and Speaker of Lok Sabha C. Cabinet Ministers and Governors of States D. Supreme Court Judges and Attorney General for India

▼ Show answer

Ans: B — Both the Chief Justice of India (CJI) and the Speaker of the Lok Sabha share equal precedence at Rank 6.

Q8. Which of the following motions can be moved ONLY in the Lok Sabha and requires the support of at least 50 members to be admitted?

1. Adjournment Motion
2. No-Confidence Motion
3. Censure Motion

Select the correct answer using the code given below:

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

▼ Show answer

Ans: A — Both the Adjournment Motion and the No-Confidence Motion can be moved only in the Lok Sabha and require the support of at least 50 members for admission. A Censure Motion also lies only in the Lok Sabha, but does not strictly require 50 members for leave.

Q9. With reference to Parliamentary Committees, which committee is the LARGEST committee of the Indian Parliament and consists of members drawn EXCLUSIVELY from the Lok Sabha?

A. Public Accounts Committee B. Estimates Committee C. Committee on Public Undertakings D. Business Advisory Committee

▼ Show answer

Ans: B — The Estimates Committee is the largest committee of Parliament, consisting of 30 members, all elected from the Lok Sabha alone (no representation from the Rajya Sabha). It was set up in 1950 on the recommendation of Finance Minister John Mathai.

Q10. Which prerogative writ can be issued against BOTH public authorities and private individuals?

A. Mandamus B. Quo-Warranto C. Habeas Corpus D. Prohibition

▼ Show answer

Ans: C — Habeas Corpus (meaning 'to have the body of') can be issued against both public authorities and private individuals who have unlawfully detained a person. Mandamus, Prohibition, and Certiorari are not issued against private individuals.

Q11. The writ of 'Prohibition' is issued by a superior court to:

A. A public official to compel the performance of a public duty B. An inferior court or tribunal to prevent it from exceeding its jurisdiction C. An inferior court to quash an order already passed in excess of jurisdiction D. A person claiming a public office without legal authority

▼ Show answer

Ans: B — Prohibition is a preventive writ issued to an inferior court or tribunal to forbid it from continuing proceedings beyond its jurisdiction. Certiorari is both preventive and curative (quashing an order already passed).

Q12. The Chairman and members of a State Public Service Commission (SPSC) are appointed by the Governor, but they can be REMOVED from office only by the:

A. Governor of the concerned State B. President of India on the report of the Supreme Court C. Chief Justice of the High Court D. State Legislative Assembly through an impeachment resolution

▼ Show answer

Ans: B — Under Article 317, the Chairman and members of an SPSC are appointed by the Governor, but they can only be removed by the President of India on grounds of misbehaviour after an inquiry by the Supreme Court.

Q13. Under Article 359 of the Constitution of India, as amended by the 44th Constitutional Amendment Act, 1978, the enforcement of which Fundamental Rights CANNOT be suspended even during a National Emergency?

A. Articles 14 and 19 B. Articles 19 and 20 C. Articles 20 and 21 D. Articles 21 and 22

▼ Show answer

Ans: C — The 44th Constitutional Amendment Act, 1978 provided that the President cannot suspend the right to move any court for the enforcement of Fundamental Rights guaranteed under Articles 20 (protection in respect of

conviction) and 21 (protection of life and personal liberty).

Q14. Which Directive Principle of State Policy directs the State to organize Village Panchayats as units of local self-government?

A. Article 39A B. Article 40 C. Article 44 D. Article 50

▼ Show answer

Ans: B — Article 40 (Gandhian principle) directs the State to organize village panchayats and endow them with necessary powers to function as units of self-government. Article 44 pertains to the Uniform Civil Code, and Article 50 to separation of judiciary from executive.

Q15. Which of the following bodies is NOT a constitutional body?

A. Finance Commission of India B. Union Public Service Commission C. National Commission for Backward Classes (NCBC) D. Central Vigilance Commission (CVC)

▼ Show answer

Ans: D — The Central Vigilance Commission (CVC) is a statutory body created under the CVC Act, 2003 (originally set up by executive resolution in 1964). Finance Commission (Art. 280), UPSC (Art. 315), and NCBC (Art. 338B via 102nd Amendment) are constitutional bodies.

Q16. By which Constitutional Amendment Act were the words 'SOCIALIST', 'SECULAR', and 'INTEGRITY' inserted into the Preamble of the Indian Constitution?

A. 24th Amendment Act, 1971 B. 42nd Amendment Act, 1976 C. 44th Amendment Act, 1978 D. 73rd Amendment Act, 1992

▼ Show answer

Ans: B — The 42nd Constitutional Amendment Act, 1976 (known as the 'Mini-Constitution') amended the Preamble for the only time, adding the words 'Socialist', 'Secular', and 'Integrity'.

Q17. The 'Right to Property' was deleted from the list of Fundamental Rights and made a legal right under Article 300A by which Amendment?

A. 42nd Amendment Act, 1976 B. 44th Amendment Act, 1978 C. 52nd Amendment Act, 1985 D. 86th Amendment Act, 2002

▼ Show answer

Ans: B — The 44th Constitutional Amendment Act, 1978 deleted Article 19(1)(f) and Article 31 (Right to Property) from Part III and inserted Article 300A in Part XII, making it a legal/constitutional right.

Q18. The 91st Constitutional Amendment Act, 2003 restricted the total number of Ministers, including the Prime Minister, in the Union Council of Ministers to not exceed:

A. 10% of the total strength of the Lok Sabha B. 15% of the total strength of the Lok Sabha C. 20% of the total strength of the Lok Sabha D. 50 members in total

▼ Show answer

Ans: B — The 91st Amendment Act, 2003 inserted Article 75(1A), capping the Council of Ministers at maximum 15% of the total strength of the Lok Sabha. In states, the ceiling is also 15% of the Legislative Assembly, with a minimum of 12 ministers (Article 164(1A)).

Q19. Which Constitutional Amendment Act discontinued the reservation/nomination of seats for the Anglo-Indian community in the Lok Sabha and State Legislative Assemblies?

A. 101st Amendment Act, 2016 B. 102nd Amendment Act, 2018 C. 103rd Amendment Act, 2019 D. 104th Amendment Act, 2020

▼ Show answer

Ans: D — The 104th Amendment Act, 2020 extended the reservation for SCs and STs in the Lok Sabha and State Assemblies until 2030, but chose not to extend the nomination of 2 Anglo-Indian members in the Lok Sabha (Art. 331)

and 1 in Assemblies (Art. 333).

Q20. The 106th Constitutional Amendment Act, 2023 (Nari Shakti Vandan Adhiniyam) provides what percentage of reservation for women in the Lok Sabha and State Legislative Assemblies?

A. 25% B. 30% C. 33% D. 50%

▼ Show answer

Ans: C — The 106th Amendment Act, 2023 provides for 33% (one-third) reservation for women in the Lok Sabha, State Legislative Assemblies, and the Legislative Assembly of NCT of Delhi for a period of 15 years, effective following delimitation.

Q21. Arrange the following Panchayati Raj committees in chronological order of their appointment: 1. Ashok Mehta Committee 2. Balwant Rai Mehta Committee 3. L.M. Singhvi Committee 4. G.V.K. Rao Committee

Select the correct answer using the code given below:

A. 2 — 1 — 4 — 3 B. 2 — 1 — 3 — 4 C. 1 — 2 — 4 — 3 D. 2 — 4 — 1 — 3

▼ Show answer

Ans: A — Chronological order: Balwant Rai Mehta Committee (1957) → Ashok Mehta Committee (1977) → G.V.K. Rao Committee (1985) → L.M. Singhvi Committee (1986).

Q22. The landmark 'Basic Structure Doctrine' limiting the amending power of Parliament under Article 368 was propounded by the Supreme Court in:

A. Shankari Prasad Case (1951) B. Golaknath Case (1967) C. Kesavananda Bharati Case (1973) D. Minerva Mills Case (1980)

▼ Show answer

Ans: C — In Kesavananda Bharati v. State of Kerala (24 April 1973), a 13-judge bench of the Supreme Court held by a 7:6 majority that while Parliament can amend any part of the Constitution, it cannot alter its 'Basic Structure'.

Q23. In which case did the Supreme Court hold that the procedure established by law under Article 21 must be 'just, fair, and reasonable', effectively importing the American concept of 'Due Process of Law'?

A. A.K. Gopalan Case (1950) B. Maneka Gandhi Case (1978) C. Sunil Batra Case (1980) D. Kharak Singh Case (1963)

▼ Show answer

Ans: B — In Maneka Gandhi v. Union of India (1978), the Supreme Court overruled the narrow view in A.K. Gopalan (1950) and ruled that the procedure depriving a person of life or liberty must be just, fair, and reasonable, introducing substantive due process into Article 21.

Q24. In S.R. Bommai v. Union of India (1994), the Supreme Court laid down comprehensive guidelines to prevent the arbitrary misuse of which Article?

A. Article 352 B. Article 356 C. Article 360 D. Article 365

▼ Show answer

Ans: B — In S.R. Bommai (1994), a 9-judge bench ruled that the proclamation of President's Rule under Article 356 is subject to judicial review, floor test in the Assembly is the only valid criterion, and Secularism is part of the basic structure.

Q25. Which was the FIRST state to be created on a linguistic basis in post-independence India?

A. Andhra State (1953) B. Gujarat (1960) C. Maharashtra (1960) D. Kerala (1956)

▼ Show answer

Ans: A — Andhra State was formed on 1 October 1953 for Telugu-speaking people following the 56-day hunger strike and death of Potti Sreeramulu. Its initial capital was Kurnool.

Q26. Consider the following statements regarding the State Legislature of Uttar Pradesh: 1. The Uttar Pradesh Legislative Assembly (Vidhan Sabha) has 403 directly elected seats. 2. The Uttar Pradesh Legislative Council (Vidhan Parishad) consists of 100 members. 3. Uttar Pradesh has the highest representation in both the Lok Sabha (80 seats) and the Rajya Sabha (31 seats).

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

▼ Show answer

Ans: D — All three statements are correct. UP has 403 Vidhan Sabha seats (84 SC, 2 ST), 100 Vidhan Parishad seats, 80 Lok Sabha seats (17 SC), and 31 Rajya Sabha seats.

Q27. Who among the following was the Constitutional Adviser to the Constituent Assembly during the drafting of the Indian Constitution?

A. Dr. B.R. Ambedkar B. Sir B.N. Rau C. Dr. K.M. Munshi D. S.N. Mukherjee

▼ Show answer

Ans: B — Sir B.N. Rau was appointed as the Constitutional Adviser to the Constituent Assembly. He prepared the initial draft of the Constitution. Dr. B.R. Ambedkar was the Chairman of the Drafting Committee.

Q28. The Sarkaria Commission on Centre-State Relations was appointed in 1983. Which of the following was among its key recommendations?

A. Total abolition of the office of Governor B. Complete abolition of All-India Services (IAS and IPS) C. Article 356 should be used only as a last resort in extreme cases D. Deletion of the Concurrent List from the Seventh Schedule

▼ Show answer

Ans: C — The Sarkaria Commission (1983–87) recommended that Article 356 must be used very sparingly as a matter of last resort, an Inter-State Council should be established under Article 263, and All-India Services should be strengthened rather than abolished.

Q29. Financial Emergency under Article 360 of the Constitution of India has been declared in India:

A. Once during the 1962 China War B. Once during the 1991 balance-of-payments crisis C. Twice D. Never

▼ Show answer

Ans: D — Financial Emergency under Article 360 has never been declared in India so far.

Q30. What is the MAXIMUM lifespan of an Ordinance promulgated by the President under Article 123 in the absence of parliamentary disapproval?

A. 6 weeks B. 6 months C. 6 months and 6 weeks D. 1 year

▼ Show answer

Ans: C — An ordinance ceases to operate 6 weeks from the reassembly of Parliament. Since the maximum gap between two sessions of Parliament is 6 months, the maximum lifespan of an ordinance is 6 months and 6 weeks.